

Before the
FEDERAL MARITIME COMMISSION

Docket No. 22-21

MSRF, Inc.
v.
Yang Ming Transport Corporation

**RESPONDENT YANG MING MARINE TRANSPORT CORPORATION
UNOPPOSED MOTION FOR CONFIDENTIAL TREATMENT OF PORTIONS
OF ORIGINAL VERIFIED ANSWER AND EXHIBITS**

Respondent Yang Ming Marine Transport Corporation¹ (“Yang Ming”) moves pursuant to 46 C.F.R. §§ 502.5(b) and 502.69 for the confidential treatment of the non-public version of Respondent’s Original Verified Answer (“Answer”) and Exhibits submitted therewith (“Yang Ming Exhibits”).

The Exhibits to the Answer constitute a confidential contract between Complainant and Respondent Yang Ming and a compendium of certain information therein pertaining to that contract. Each contains sensitive, confidential business information, disclosure of which would cause commercial harm to Respondent Yang Ming and to Complainant. The limited portions of the Answer marked as confidential are references to the contents of the confidential Yang Ming Exhibits, and so warrant the same protection.

Counsel for Respondent has conferred with counsel for Complainant MSRF, Inc., and Complainant does not oppose the instant Motion.

Pursuant to Rule 502.5(b), Respondent Yang Ming has contemporaneously provided a Confidential-Restricted version designating the Yang Ming Exhibits and portions of the Answer as confidential to the Presiding Officer and a Public Version to the Office of the Secretary in which the confidential information has not been included.

¹ The Complaint identifies Respondent as “Yang Ming Transport Corporation” rather than “Yang Ming Marine Transport Corporation.” Respondent may agree to treat it *nuc pro tunc* corrected.

For the foregoing reasons, Respondent Yang Ming respectfully requests that the portions of the Answer and its exhibits identified by Yang Ming as confidential be kept confidential and not disclosed to the public.

DATED: September 13, 2022

Respectfully submitted,

By: /s/ Rebecca A. Fenneman

Counsel for Respondent Yang Ming Marine Transport Corporation

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CERTIFICATE OF SERVICE

I certify that on the 13th day of September, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

ATTORNEYS FOR COMPLAINANT:

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